



Appeal Decision

Site visit made on 1 July 2026 by T Morris BA (Hons) MSc MRTPI

Decision by C McDonagh BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 04 September 2026

Appeal Ref: 6008813

17 Willow Court, Pool in Wharfedale, Otley, Leeds LS21 1RX

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs Baker against the decision of Leeds City Council.
 - The application Ref is 26/01083/FU.
 - The development proposed is loft conversion with dormer to the rear.
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Decision

1. The appeal is dismissed.

Appeal Procedure

2. The site visit was undertaken by a representative of the Inspector whose recommendation is set out below and to which the Inspector has had regard before deciding the appeal.

Preliminary Matters

3. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published by the Government. This is a material consideration in the decision-making process from the day of publication. As the changes do not affect the main issue in this appeal, it was not necessary to seek the views of the main parties.

Main Issue

4. The main issue is the effect of the proposed development on the character and appearance of the host dwelling and the surrounding area, including whether it would preserve or enhance the character or appearance of the Pool in Wharfedale Conservation Area.

Reasons for the Recommendation

5. The appeal site comprises a two-storey detached dwelling which is situated in a residential part of Pool in Wharfedale. Most of the dwellings in the vicinity feature simple and unaltered pitched roof forms with a mix of hips and gables. This includes the gable roof form and plain roof slopes of the appeal property, which appear commensurate to the surrounding roofscape.
6. The appeal site is located in the Pool in Wharfedale Conservation Area (CA). The Pool-in-Wharfedale Conservation Area Appraisal and Management Plan (2009) (CAAMP) sets out that the significance of the CA is derived from its rural location, landscape setting and geographical surroundings. Its many historic buildings together with consistent materials including sandstone, stone slate and Welsh slate

roof tiles also contribute positively to the historic character and appearance of the CA.

7. The site is located in Character Area 4 as identified in the CAAMP. This area comprises twentieth century housing, with some variety to the design of the dwellings. However, its most positive feature is its discreetness, so much so that the existing buildings in this area generally have a neutral effect on the historic environment in the CA. In that regard, the host building's gable roof form blends in with the appearance of the surrounding roofscape. Accordingly, the simple and generally consistent roofs, including that of the appeal property, contributes positively to the discreet and unobtrusive appearance of the dwellings in this particular area, and thus the character and appearance of the CA as a whole.
8. The Council's Householder Design Guide Supplementary Planning Document (2012) (SPD) advises that extensions should respect the form, character and appearance of the main dwelling, with particular attention paid to the roof form and roof line. It also advises that dormer windows should be as small as possible, with a substantial area of the original roof retained, should be set down from the ridge, up from the eaves and in from the sides, and should not dominate the roof plane and unbalance the existing dwelling.
9. However, the proposed dormer window would have little set back from the host ridge, eaves or sides of the existing roof. Due to the considerable scale and mass of the proposed dormer, it would dominate the rear roof slope of the host dwelling. Therefore, it would appear excessively large where very little of the original rear roof slope would be perceptible whilst also making it appear top heavy. Furthermore, the resulting flat roof design would sharply contrast with the pitched roof form of the host dwelling, as well as most of the other roofs in the locality. Consequently, the dormer window would be a bulky and incongruous addition to the host dwelling, contrary to the guidance in the SPD.
10. Although it would be located on the rear roof slope and there are mature trees to the rear of the site to screen most views, the dormer window would be visible along Willow Court and above the boundary fences of the surrounding gardens. It would stand out in such views compared to the more discreet appearance of the dwellings nearby. Moreover, the proposed elevations show that the solar panels would be sited close to and just above the roof ridge line of the dwelling. Therefore, the solar panels would be slightly visible above the roof ridge, which would introduce a further incongruous feature into the roofscape and the street scene.
11. With the above factors in mind, the dormer window would fail to respect the character and appearance of the host dwelling and the surrounding area. Even though it would not interfere with a key view in the CA, given the positive weight the CAAMP places on the discreet and unobtrusive appearance of the dwellings in this part of the CA, the overwhelming of the host roof by the proposal would be harmful to the character and appearance of the CA as a whole. The use of matching materials would not be sufficient to successfully assimilate the development with the host dwelling and the wider area given the above.
12. I have considered the examples of dormer windows which the appellant refers to on Willow Court. However, these are limited in number and do not reflect the prevailing characteristics of the majority of the surrounding roofscape, to the extent that they justify the scheme. Furthermore, there is little substantive evidence to support the

appellant's claim that approximately 50% of properties in the area have been altered or extended. In any case, this contrasts with my own observations from my site visit where the roofscape appeared largely unaltered.

13. There is also limited supporting information before me regarding the developments shown at '14 Millcroft' and 'Balgownie, Mill Lane'. Moreover, neither example seem to show dormer windows of similar scale to the appeal scheme while they also appear to be located some distance from the appeal site and would therefore have had their own characteristics in their respective street scenes. There is also little contextual information provided in order to demonstrate how the example at '2 Bay Moreton' is relevant. Consequently, none of the examples of developments referred to by the appellant alter my findings.
14. Section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act) requires that special attention must be paid to the desirability of preserving or enhancing the character or appearance of conservation areas. For the reasons set out, the proposal would not preserve or enhance the character or appearance of the CA.
15. It would result in harm to the significance of the CA which would be focussed on the appeal site and its surroundings. As such this would be relatively localised and minor in scale. In accordance with the requirements of policy HE6(4) of the Framework, where a development proposal would harm the significance of a designated heritage asset, the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal.
16. In that regard, I understand that it is the appellant's desire to provide additional family accommodation. However, this would be of private rather than public benefit. I acknowledge that the proposal would extend an existing building and it would use renewable energy sources. As per policy W3 of the Framework, substantial weight should be given to the contribution that small-scale projects can make to reducing greenhouse gas emissions. However, this must still be balanced against the harm to the CA to which I must give considerable weight to in this case as per policy HE6(3) of the Framework. The absence of harm to residential amenity is a neutral factor which does not weigh in favour of the appeal. Overall, the public benefits arising from the development would not outweigh the considerable importance and weight I must give the harm to the CA as a designated heritage asset.
17. I therefore conclude that the proposed development would be harmful to the character and appearance of the host dwelling and the surrounding area, and it would fail to preserve or enhance the character or appearance of the CA. It would be contrary to section 72(1) of the Act, policies P10 and P11 of the Leeds Core Strategy (2014) and policies GP5, N19 and BD6 of the Leeds Unitary Development Plan (Review 2006). Amongst other matters, these require that developments are appropriate to their context, respect the character and quality of the surrounding buildings and protect and enhance the historic townscape.

Other Matter

18. Although the appellant refers to the guidance within the Natural Resources and Waste Local Plan in terms of encouraging sustainable development, copies of these have not been provided. In any event, I have attributed suitable positive weight to the use of renewable energy in my assessment, and this does not alter my conclusions on the appeal overall.

Conclusion and Recommendation

19. The proposal would be contrary to the Act and the development plan overall, as well as the advice in the Framework. There are no other material considerations which would outweigh this conflict, including the public benefits as presented to me. Therefore, I recommend that the appeal should be dismissed.

T Morris

APPEAL PLANNING OFFICER

Inspector's Decision

20. I have considered all the submitted evidence and my representative's report and on that basis the appeal is dismissed.

C McDonagh

INSPECTOR